

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUBC033662: JUAN MARTINEZ vs NISSAN NORTH AMERICA, INC.

06/24/2026 in Department 44

Motion to be Relieved as Counsel RE: Juan Martinez

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Strategic Legal Practices, APC’s Motion to Be Relieved As Counsel For Plaintiff Juan Martinez

Tentative Ruling:

Strategic Legal Practices, APC’s Motion to Be Relieved As Counsel For Plaintiff Juan Martinez is DENIED WITHOUT PREJUDICE.

The moving papers assert facts that support permissive withdrawal under Rule of Professional Conduct 1.16, subdivisions (b)(4) and (c). Counsel’s declaration indicates that Plaintiff was personally served with the moving papers and that a copy of the proof of service will be filed with the court at least five days before the hearing. But no such proof of service has been filed with the Court.

The declaration also states in section 7 that copies of the papers were electronically served on Plaintiff. But there is no declaration to the effect that the email address is the last known email address of Plaintiff, as no boxes in section 3.b are checked and no separate declaration of counsel has been filed asserting such facts.

In addition, neither counsel's declaration nor the proposed order list the dates of the currently-pending hearings, including the jury trial. There is a hearing referenced in section 4 of counsel's declaration, but the type of hearing is not specified, and the date is wrong (June 5th), and the place is wrong (listing Department 21 instead of Department 44).

For these reasons, the motion is denied without prejudice.

Strategic Legal Practices, APC is ordered to give notice of the Court's ruling.